

AOC-497.3 Rev. 7-20 Page 1 of 2	Doc. Code: OAE		Case No. _____
Commonwealth of Kentucky Court of Justice www.kycourts.gov			Court _____
KRS 431.076		ORDER FOR AUTOMATIC EXPUNGEMENT OF RECORD UPON ACQUITTAL OR DISMISSAL WITH PREJUDICE	County _____
			Division _____

THE FOLLOWING EXPUNGEMENTS ARE REQUIRED BY LAW AND DO NOT REQUIRE ANY PETITION, MOTION, OR OTHER ACTION OF THE DEFENDANT

COMMONWEALTH OF KENTUCKY	PLAINTIFF
VS.	
NAME	DEFENDANT
ADDRESS	
PHONE NUMBER	Jail ID Number (optional)
Defendant's Birthdate:	Defendant's SSN:

The Court makes the following findings of fact:

1. Defendant was charged with the following:
- | | |
|---------|---------|
| CHARGE: | CHARGE: |
| CHARGE: | CHARGE: |
| CHARGE: | CHARGE: |
2. On or after **July 15, 2020**, Defendant was acquitted of the above-listed charge(s) **OR** the above-listed charge(s) was/were dismissed with prejudice against the Defendant and the dismissal was **NOT in exchange for a guilty plea** to another charge.
3. Thirty (30) days have expired since the entry of the order of acquittal or dismissal with prejudice.
4. Defendant has not objected to the expungement.

THEREFORE, IT IS HEREBY ORDERED:

1. The above-listed **charge(s) is/are EXPUNGED from the court records**. Upon entry of this Order, the proceedings shall be deemed never to have occurred; the Court shall reply to any inquiry that no record exists; and Defendant shall not have to disclose the fact of the record or any matter relating to it on an application for employment, credit, or other purpose.
2. **With the exception of any records in the custody of the Department for Community Based Services**, the Kentucky State Police and other following agencies with custody of records relating to the arrest, charge or other matters arising out of the arrest or charge, shall expunge the record, including but not limited to; arrest records, fingerprints, photographs, index references, or other documentary or electronic data, **and shall certify to the Court on this form** within sixty (60)

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VS.	
NAME	DEFENDANT
ADDRESS	
PHONE NUMBER	Jail ID Number (optional)
Defendant's Birthdate:	Defendant's SSN:

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1. Defendant was charged with the following:
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| CHARGE: | CHARGE: |
| CHARGE: | CHARGE: |
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Case No. _____

_____ days of the entry of this order that the required expunging action has been completed:

3. Inspection of the records included in this Order may hereafter be permitted by the Court only upon Petition by the person who is the subject of such records, and only to those persons named in such Petition.

_____, 2_____
Date

Judge

AGENCY CERTIFICATION _____, an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the agency has no records in its custody relating to the Defendant/matter OR ☐ the agency has completed the expungement as directed by this Court. Date: _____, 2_____. Agency Records Custodian: _____

Distribution: Original - Court File

Copies: Defendant/Attorney; Kentucky State Police, 1266 Louisville Road, Frankfort, KY 40601; Named Agencies

Circuit Clerk: Refer to Clerk’s Manual for instructions on filing this certification.

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